

Jeetu @ Jeet Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 September 2016 · WRIT - C No. 41720 of 2016 · **Writ disposed of; half deposit; authority to decide objection.**

HEADNOTE

A writ court will not try an electricity assessment demand under Article 226 where the consumer has already filed a detailed objection. Deposit of half the demanded amount is the condition on which the authority is to decide that objection within three months.

FACTUAL SUMMARY

The petitioner's father took a 7.5 HP tubewell connection and paid the bills until his death in 2010; the petitioner then continued payment. A 30 September 2014 notice demanded Rs 78,360. After a reply, a 13 March 2015 demand claimed Rs 78,385, which the petitioner answered on 27 March 2015. He sought quashing of that demand as issued without a finalized assessment and only on a Junior Engineer's FIR. The licensee said the 2005 Supply Code gave a remedy to challenge the assessment.

HOLDING-UNITS

INTERPLAY · UP-2005

assessment-objection

HOLDING

Once the consumer has already objected to an assessment demand, that objection cannot be adjudicated under Article 226. If half the demanded amount is deposited within fifteen days, the authority shall decide the objection within three months. ¶ 5-6

FLAG order cites U.P. Electricity Supply Code, 2005 generally as the remedy to challenge assessment; no clause numbered

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ court will not try an electricity assessment demand under Article 226 where the consumer has already filed a detailed objection. Deposit of half the demanded amount is the condition on which the authority is to decide that objection within three months. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 13 MARCH 2015 DEMAND AND WHETHER THE ASSESSMENT WAS FINALIZED

Left to the authority on 50% deposit; writ court declined to try the demand. ¶ 5-6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Shri Bholu v. State of U.P.</i> Writ-C No. 21927 of 2016, order dated 15.7.2016			3	Referred

